

Jurisdiction of Civil Court

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Jurisdiction

- Power or authority of a court of law to HEAR and DETERMINE a cause/ matter.
- Official Trustee v. Sachindra Nath- the court must have the jurisdiction to give order that is sought.
- CONSENT CANNOT TAKE AWAY NOR CONFER JURISDICTION OF A COURT.
- AR Antulay v. RS Nayak- case transferred from SJ to HC but SC did not have jurisdiction to make this transfer. Void as even SC cannot expand its jurisdiction.

Intro

- Power to create/enlarge jurisdiction or to give right of appeal – legislative in nature
- Defect of jurisdiction v. irregular exercise of jurisdiction
- Lack of jurisdiction – strikes at authority of court to pass a decree. Not cured by consent of parties. J is null.
- Agreement to oust jurisdiction – unlawful and void – against public policy.

CONT.

- Incorrectness of decision – NOT without jurisdiction – if aggrieved does not take necessary steps to get error corrected- erroneous decree will hold good.
 - Nullity can be set up in collateral proceedings.
 - Mathai Mathai v. Varkey Varkey – suit was time barred.
 - BASIS of deciding jurisdiction – PLAINT, not WS
 - Plaintiff is dominus litus- Abdulla Bin Ali v. Galappa – ALLEGATIONS OF PLAINT
DECIDE JURISDICTION
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Kinds

- Whenever jurisdiction is challenged, it has inherent powers to determine the said question.
- 1. Civil and Criminal
- 2. Territorial/ local jurisdiction
- 3. Pecuniary jurisdiction – amount/value of subject matter (sec. 6)
- 4. Subject Matter – eg- testamentary matters, divorce cases etc.
- 5. General & special

Subject matter jurisdiction

Section 9 – a civil court has jurisdiction to try all suits of civil nature unless they are expressly/ impliedly barred.

Essentials- 1. suit must be of a civil nature, 2. cognizance of such suit must not have been barred.

Civil nature? – pertaining to private rights and remedies as opposed to criminal, political or other rights.

Subject matter of suit decided jurisdiction

Explanations

- 1. – right of property or office is contended – suit is of civil nature even though the primary question is of religious rites/ceremonies.
- 2.- immaterial if any fees is attached to any such office or if office is attached to some property/place. It does not matter if money is involved or if it is an honorary post. (eg- chairman of a club)
- Civil nature = legal civil right + socio-religious right
- Purely socio-religious right- not a suit of civil nature

Civil nature

- Expansive jurisdiction
 1. Right to worship
 2. Right to take out a religious procession
 3. Right to adult franchise/vote
 4. Right of pardanashin lady to observe Parda
 5. Right to decent burial

1. Right to continue in honorary office unless it involves some legal rights?
2. Expulsion from caste? If only for reinstatement
3. Claiming funds for holding religious festivals? – promise to contribute

If estoppel

Implied Bar – pure political issues, sovereign relations, issues for policy

COA should pertain to civil legal rights.

Suit for arrears of rent?

Divorce?

Claiming dower?

To continue in honorary office?

Injunction on husband to not to marry again?

Most revered PMA metropolitan v. Moram Mar Mathornia 1995 SC

- SEC. 9 HAS BOTH POSITIVE AND NEGATIVE DIMENSIONS. Civil nature gives a wide expansive jurisdiction to civil courts. Pure civil suits as well as some social and religious issues which are coincidentally connected.
- “shall”
- Legal issue must be the main or the dominant issue.

Bhuri Nath v. J&K

- Right to particular office: chief priest
- Pure religious issue BUT relief sought is a legal right. Dominant issue is equally both.
- Eg- Ayodhya case – basic issue? Right to property



Express/implied Bar

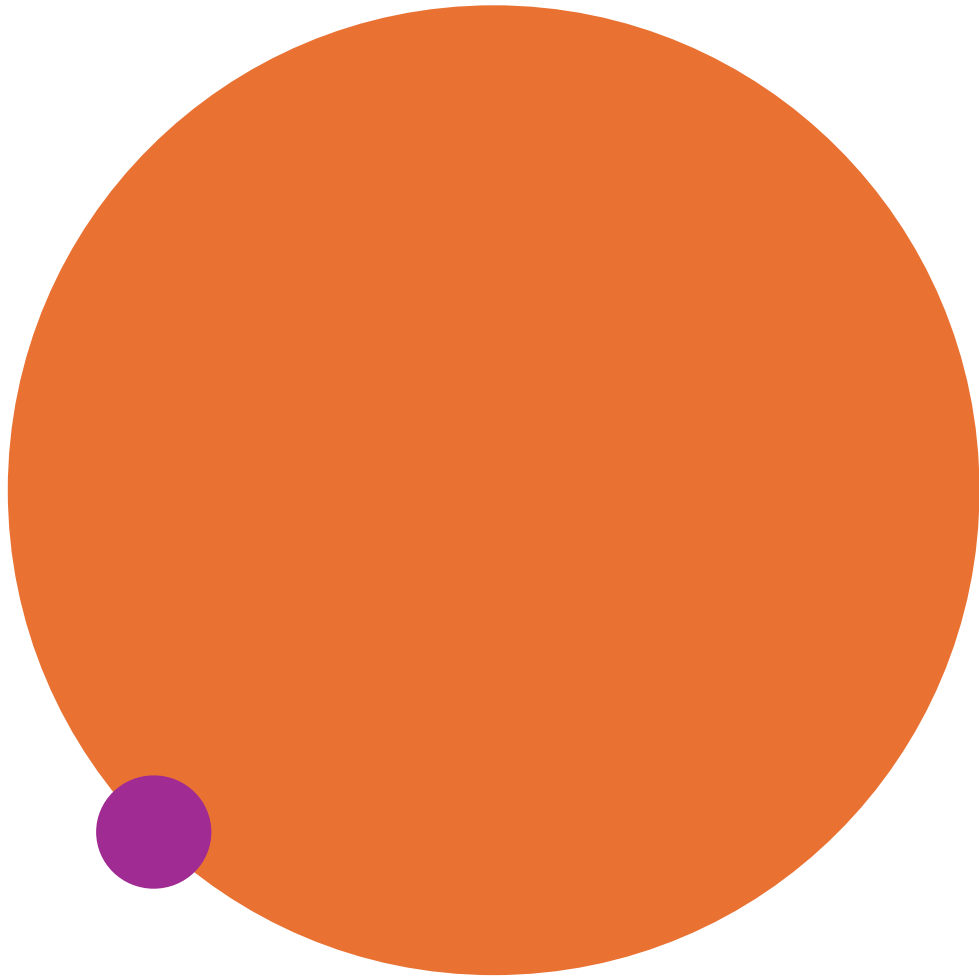
- Expressly barred by an enactment by legislation dealing with a specific subject matter.
- Abdul Waheed Khan v. Bhawani – every presumption should be in favour of jurisdiction of civil court. Strictly construed.
- Eg- motor accidents, income tax, industries tribunal, insolvency, army courts, rent controller in Delhi
- Exclusive jurisdiction/ Finality clauses.

Implied bar

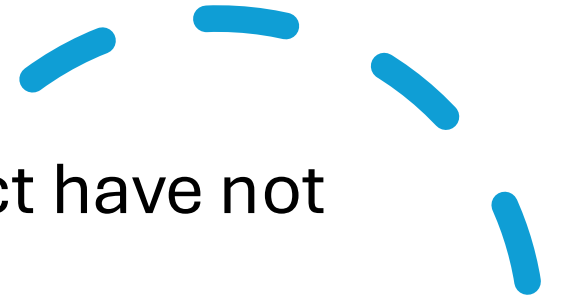
- Barred by general principles/policy of law.
- Where a specific remedy is given by statute. Where an Act creates an obligation and enforces it in a specified manner.
- Political questions?
- Matters of foreign policy?
- Ques. – Govt. signs bilateral treaty with country X, sharing river water. Govt. decides to create barrages. Group of farmers living downstream file a civil suit seeking declaration of treaty as unconstitutional and injunction seeking govt. not to divert water?

Dhulabhai V. MP 1968 SC

1. Where statute gives finality to orders – excluded if adequate remedy is provided
2. Where there is express bar. Where not express-examination of scheme of Act to find out sufficiency of remedies.
3. Special rights & liabilities provided and procedure for determination laid down
4. Exclusion of jurisdiction not to be readily inferred.
5. Implied bar- jurisdiction not completely ousted. If tribunal abuses its power or acts in violation of its provisions or if statute is ultra vires.



- Where provisions of Act have not been complied with.
- Where tribunal does not act acc. To judicial procedure or in violation of evidence rules.



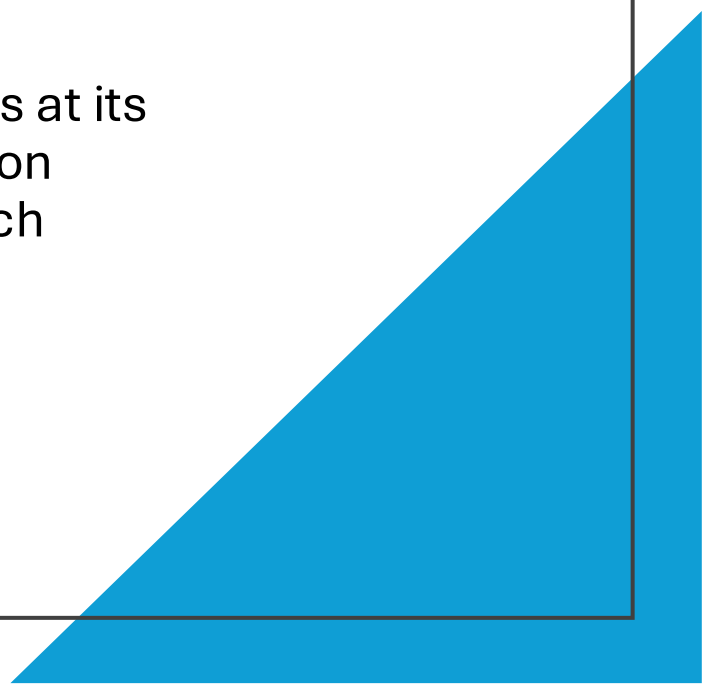
Place of suing – territorial jurisdiction

Venue for trial and not to do with competency of court

Sec. 15- every suit shall be instituted in the court of the lowest grade competent to try it. If so done, merely an irregularity under section 99.

Sec. 16- 5 kinds of suits- filed in court within whose local jurisdiction the property is situated.

Where relief is sought can be entirely obtained through personal obedience of the defendant – court where property situated or where the defendant actually and voluntarily resides, or carries his business, or personally works for gain.

- Sec. 17
 - Sec. 18
 - Sec. 19 – suit for wrong to person or movable property
 - Sec. 20 – other suits to be instituted where defendants reside or cause of action arises – equity acts in personum
 - More than one defendant – leave of court or acquiesce of other defendants
 - Explanation –a corporation shall be deemed to carry on business at its sole or principal office in India or, in respect of any cause of action arising at any place where it has also a subordinate office, at such place.
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Sec. 21

- In appellate court – lack of territorial jurisdiction cannot be claimed unless objection was raised at the trial court (court of first instance), at earliest possible opportunity or at or before issues are settled and consequent failure of justice.
- Unable to contest case fairly
- Hira lal v. Kali Nath 1962 SC – object is to protect honest litigants who have by mistake initiated proceedings in a court which is later on found to be without territorial jurisdiction.

Kiran Singh V.
Chaman
Paswan 1954
SC

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- Case tried on merits and judgment given – it should not be liable to be reversed purely on technical grounds unless it resulted in a failure of justice.